



HIGH COURT OF JUDICATURE AT ALLAHABAD

WRIT - C No. - 16381 of 2026

Nagendra Singh Gautam And 2 Others

.....Petitioner(s)

Versus

State Of U.P. And 3 Others

.....Respondent(s)

Counsel for Petitioner(s)	:	Anuj Kumar Srivastava, Narendra Mohan
Counsel for Respondent(s)	:	C.S.C., Usha Kiran

Court No. - 29

**HON'BLE ARINDAM SINHA, J.
HON'BLE SATYA VEER SINGH, J.**

1. Mr. Ram Kumar Pal, learned advocate appears on behalf of petitioners. Mr. Sharad Chandra Upadhyay, learned advocate, Standing Counsel appears on behalf of State and Ms. Usha Kiran, learned appears on behalf of respondent nos. 2 and 3 (the supply company).

2. By our earlier order dated 20th May, 2026 we had directed tagging. We find Writ C no. 27437 of 2025 (Managing Director, Electricity Company Limited and another vs. Permanent Lok Adalat and 4 others) was dismissed for default on 22nd August, 2025. Said writ petition was at instance of supply company. Prayer in it was for quashing award dated 19th May, 2025 passed by Permanent Lok Adalat, Kanpur Nagar in case no. 5 of 2025 (Nagendra Singh Gautam vs. Managing Director Kanpur Electricity Supply Company Ltd. and others). Said writ petition stood restored on order dated 10th February, 2026. The writ petition was and is now before the learned single Judge. As such it cannot be tagged with this Writ C no. 16381 of 2026. Accordingly Writ C no. 27437 of 2025 be detached and the file to be placed before the learned single Judge having nomination, in usual course of business.

3. Mr. Paul submits, his client made application for electric connection on 4th September, 2024. The rate per square feet for connection charges was Rs. 35/-. On query Mr. Pal submits, there was enhancement of rate to Rs. 70/- per square feet in February, 2025. The supply company sat on his client's application and thereafter claimed enhanced rate for giving the

connection. It is an act that should be struck down on direction that connection be given upon the charge calculated at Rs. 35/- per square feet.

4. Ms. Kiran relies on a provision in Electricity Supply Code, 2005, which she is unable to point out from year 2025 publication of the Code. The supply company is to demonstrate omission to inform the connection charge to petitioners post 4th February, 2024 and prior to February, 2025. In event it is successful, petitioner will be liable to pay the enhanced charge. On omission petitioner can only be asked to pay at the earlier rate and we will direct accordingly.

5. List on 3rd July, 2026 as fresh.

(Arindam Sinha,J.)

(Satya Veer Singh,J.)

May 27, 2026
Jaswant